IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)

Item No. 1
C.A.(CAA)/4/Chd/HP/2024
(1st Motion)

IN THE MATTER OF:
Inox Wind Energy Limited ... Petitioner

Under Section: 230-232, CA 2013

Order delivered on 02.02.2024

CORAM:
SHRI. P.S.N. PRASAD,
HON'BLE MEMBER (J)

SHRI. UMESH KUMAR SHUKLA,
HON'BLE MEMBER (T)

PRESENT:
For the Petitioner : Mr. Anand Chhibar, Senior Advocate with Mr. Dhartiman Bhattacharaya and Mr. Rajat Khanna, Advocates.
Mr. Vishav Bharti Gupta, Advocate.

ORDER

This is a first motion application under Section 230-232 of the Companies Act for amalgamation wherein the transferor company has prayed for convening the meeting of shareholders and dispensation of the meeting of Unsecured Creditors as there are 100% consent from the Unsecured Creditors and as far as the Secured Creditors are concerned the transferor company which is Applicant Company No.1 has confirmed that there are no Secured Creditors. Therefore, no meeting is required to be held.

Heard the submissions made by the petitioner. The petitioner has prayed time for submitting the affidavit containing the reconciliation of creditors and share capital shown in the annual accounts and that as per the list of Creditors and Shareholders submitted by it. It is noted that the companies are in the business of sale of energy and therefore, Central Electricity Regulatory Commission/State Electricity Regulatory Commission

and Ministry of New and Renewable Energy may be for the Sectoral Regulator in the matter. The petitioner has prayed time for submitting the affidavit regarding applicability on the observations. Ten days' time as prayed for, is granted in this matter.

Mr. Vishav Bharti Gupta, Advocate has raised an objection for considering the present proposal by this Tribunal. The learned counsel may take steps for filing proper application, showing the cause, as to why he is objecting the scheme.

Let this matter be posted on 16.02.2024.

Sd/-
(DR. P.S.N. PRASAD)
HON'BLE MEMBER (J)

Sd/-
(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

February 2, 2024
Mukta